

The Central Electricity Regulatory Commission (Payment Of Fee) Regulations, 2004

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[Rule THE-CENTRAL-ELECTRICITY-REGULATORY-COMMISSION-PAYMENT-OF-FEE-REGULATIONS-2004 of 2004](#)

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[Notification No. L-7/25\(8\)/2004/CERC, dated 21st July, 2004.-In exercise of powers conferred under Section 178 of the Electricity Act, 2003 \(](#)

[36 of 2003](#)

[\) and all other powers enabling in this behalf and after previous publication, the Central Electricity Regulatory Commission \(hereinafter referred to as the Central Commission\) hereby makes the following regulations, namely:-](#)

[1.](#)

Short title and commencement.-

(1)

These regulations may be called the Central Electricity Regulatory Commission (Payment of Fee) Regulations, 2004.

(2)

These regulations shall come into force from the date of their publication in the Gazette of India.

2.

Fee structure.-

(1)

(i)

Every application for determination of tariff shall be accompanied by fee specified in the Schedule to these regulations.

(ii)

An application which is not the application for determination of tariff or the application for inspection of the judicial records or for obtaining certified copies of the documents forming part of judicial records shall be accompanied by a fee of Rupees twenty thousand only and the balance fee payable, if any, as specified in the Schedule shall be paid within two weeks after admission of the application.

(iii)

No fee shall be payable on an application made by the Regional Load Despatch Centre and the Consumer Group registered with the Central Commission.

Note.- The fee specified in the Schedule does not include application fee for grant of licence prescribed by the Central Government and the licence fee specified separately by the Central Commission.

(2)

The fee shall be payable through a demand draft/pay order in favour of Assistant Secretary, Central Electricity Regulatory Commission, New Delhi.

(3)

Fee received shall be entered into a register to be maintained by the Central Commission prescribed for the purpose in the format given below:

Sl. No

Petition/

Application No.

Name of the party remitting DD/Pay Order

Purpose of remittance of DD/Pay order

Amount

No. and date of DD/Pay Order

Name of the Bank/ Branch

Balance fee payable, if any, and date of payment of the balance fee along with particulars of DD/Pay Order

Name and initials of the Clerk receiving demand draft/Pay order

Name and initial of the official to whom demand draft/Pay Order has been passed

Remarks

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3.

Repeal and Saving.-

(1)

The corresponding paragraphs of the Central Electricity Regulatory Commission (Miscellaneous Provisions) Order, 1999 laying down fees for different purposes are hereby omitted.

(2)

Notwithstanding the omission, anything done or purported to have been done or any action taken or purported to have been taken under the omitted provisions before such omission, shall be deemed to have been done or purported to have been done or taken or purported to have been taken under these regulations.

Schedule

FEE STRUCTURE

Sl.

No.

Name of application

Fee

(in Rs.)

1.

Application for determination of generation tariff

25 lakh

2.

Application for determination of transmission tariff

5 lakh

3.

Any other application, excluding the application for grant of license

1 lakh

4.

Interlocutory Application

20,000/-

5.

Application for inspection of the judicial records

500/-

per day

6.

Application for obtaining certified copy of the documents forming part of the judicial records

10/- per page

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